

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
IN AND FOR THE COUNTY OF SAN MATEO**

Law and Motion Calendar
HONORABLE MICHAEL L. MAU
1050 Mission Road, South San Francisco
Department 20, Courtroom L
August 7, 2026 at 9:00 AM

If you intend to appear on any case on this calendar, you must give notice by 4:00 pm the court day before the hearing pursuant to California Rules of Court, Rule 3.1308(a)(1), and San Mateo County L.R. 3.403(b).

Failure to comply with notice as outlined will result in no oral presentation.

Notice of Appearance and Courtesy Copies

1. Email Dept20@SanMateoCourt.org before 4:00 pm the court day before with a copy to all parties or their counsel of record. The email must include the name of the case, the case number, and the name of the party contesting the tentative ruling OR call (650) 261-5120 before 4:00 pm the court day before and follow the instructions on the message.
2. Courtesy Copies: You must email a copy of any reply brief, or an Opposition to a Motion for Summary Judgment in an Unlawful Detainer matter to:
LawAndMotionReplyBriefs@SanMateoCourt.org

Day of Hearing

Appearances can be In Person or Remote. If appearing remotely by Zoom, please use your first and last name and mute your audio until your case is called. All parties must use a device with a camera if you are appearing remotely. Please login to the zoom hearing by 8:50 am.

Remote Appearance Zoom Information

RECORDING OF A COURT PROCEEDING IS STRICTLY PROHIBITED.

<https://sanmateocourt.zoomgov.com/> Meeting ID: 161 576 6143 Password: 142907

TO ASSIST THE COURT REPORTER, the parties are ORDERED to: (1) state their name each time they speak and only speak when directed by the Court; (2) not to interrupt the Court or anyone else; (3) speak slowly and clearly; (4) connect from a computer if at all possible, rather than a cell phone; (5) if a cell phone is absolutely necessary, the parties must be stationary and not driving or moving; (6) no speaker phones under any circumstances; (7) provide the name and citation of any cases referenced; and (8) spell all names, even common names.

Case	Title / Nature of Case
9:00 AM Line 1 23-CIV-01880	RUI DING VS. YIQIN WANG, ET AL

RUI DING
YIQIN WANG

JEREMY D. CLOYD
PHILIP A. SEGAL

Cross-Defendant Yixin Chi's Motion for Summary Judgment on FX10, LLC. and Plan B Equipment Rentals' First Amended Cross Complaint (withdrawn as to Yincheng Zhao's Cross Complaint)

TENTATIVE RULING:

Initially, the Court notes that Defendant Yiqin Chi (herein, "Cross-Defendant" unless another cross-defendant is specified) has not provided the proper address for the hearing. Department 20 is located at the Northern Branch, Courtroom L, 1050 Mission Road, South San Francisco, CA 94080. (*See* Cal. Rules of Court, Rule 3.1110 [the Notice "must specify" the location of the hearing].)

This is Cross-Defendant Yixin Chi's ("Chi") Motion for Summary Judgment on FX10, LLC dba Berryessa Water Sports and Plan B's (jointly referred to as "BWS") First Amended Cross-complaint ("FACC"). After review of all of the pleadings filed in support of and in opposition to the motion, the motion is GRANTED.

BWS' Request for Judicial Notice of Cal. Harbor and Navigations Code Section 661, and the federal Limitation of Liability Act or "LOLA" in 46 U.S.C. § 30505 (2021) is granted, but not for the truth of any matter asserted therein.

Summary of Facts

The Complaint alleges that in a catastrophic boating accident, Plaintiff Rui Ding had been wakeboarding behind a motorboat that Cross-Defendant Yiqin Wang and Cross-Defendant Yincheng Zhao had rented from Cross-Complainants FX 10 Int'l, Inc., dba Berryessa Water Sports, and Plan B Equipment Rentals LLC (herein, "Cross-Complainants" unless another cross-complainant is specified), when plaintiff got sucked into the propeller of its outboard motor by her foot which was then apparently horribly mangled.

There are numerous cross-complaints in this action. The instant motion is directed to the FACC filed by Cross-Complainants on March 6, 2025, against Cross-Defendant Chi.

Legal Discussion

BWS filed an omnibus Opposition to three Motions for Summary Adjudication / Judgment on 7/17/2026, which contained four evidentiary or procedural objections.

1. The objection that each moving party fails to carry the initial burden under Code of Civil Procedure Section 437c, is overruled. This type of omnibus objection is improper, as each motion needs to be determined on the merits and objections have to be addressed specifically.
2. The objection to noncompliant separate statements was not addressed to Chi, and is thus moot.
3. The objection that the motion seeks improper resolution of fact-intensive issues, is overruled. This type of omnibus objection is improper, as each motion needs to be determined on the merits and objections have to be addressed specifically.
4. Evidentiary objections in separate statements are overruled as an omnibus objection; but will be addressed below as needed in reference to specific objections in separate statements.

A. Legal Standard on Summary Judgment & Summary Adjudication

“A party may move for summary judgment in an action or proceeding if it is contended that the action has no merit or that there is no defense to the action or proceeding.” (Code of Civ. Proc., § 437c, subd. (a)(1).) Summary judgment will only be granted “if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law.” (*Id.*, at subd. (c).)

A defendant moving for summary judgment has an initial burden of showing either that one or more elements of a cause of action cannot be established or that there is a complete defense to the cause of action. (Code of Civ. Proc., § 437c, subd. (p)(2).) Once the initial burden has been carried, the burden shifts to the opposing party to show that a triable issue of material fact exists as either to the cause of action or a defense thereto, as applicable. (*Ibid.*)

The moving party’s ultimate burden of persuasion that there are no issues of triable fact, however, never truly shifts to the opposing party. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850.) This burden is unaffected by the strength or weakness of the showing in opposition to the motion (*Scalf v. D.B. Log Homes, Inc.* (2005) 128 Cal.App.4th 1510, 1519), and summary judgment must be denied—despite deficiencies in the opposition—if the initial burden has not been carried (*Kojababian v. Genuine Home Loans, Inc.* (2009) 174 Cal.App.4th 408, 416).

Because summary judgment deprives an adverse party of the right to a trial, any doubts are resolved in favor of the party opposing the motion. (*Huynh v. Ingersoll-Rand* (1993) 16

Cal.App.4th 825, 830; *See's Candy Shops, Inc. v. Superior Court* (2012) 210 Cal.App.4th 889, 900.) Thus, “[t]he moving party’s affidavits are to be strictly construed, and ... all conflicts in the affidavits are to be resolved in favor of the opposing party and all reasonable inferences are to be drawn in favor of that party as well.” (*Hufft v. Horowitz* (1992) 4 Cal.App.4th 8, 20.) In the present case, however, plaintiff has not filed any opposition whatsoever and there exists no conflicts in the record to be resolved in favor of the plaintiff.

B. Chi is Entitled to Summary Judgment on the 2nd Cause of Action (“C/A”) for Express Contractual Indemnity and 5th C/A for Declaratory Relief

Chi argues that it is entitled to summary judgment on the 2nd C/A for Express Contractual Indemnity and 5th C / A for Declaratory Relief, as Chi only signed a passenger waiver which undisputedly does not provide for express indemnity. Separate Statement of Undisputed Material Facts (“UMF”), No. 3. BWS concedes that Chi indeed only signed a passenger waiver. Opp. Pg. 15, lines 14-15. The Court already concluded that a passenger waiver “does not include a provision to defend and indemnify, unlike the Driver waiver.” See UMF No. 28. This is conclusive, there is no express contractual indemnity clause between these parties, and thus the motion is GRANTED on the 2nd and 5th C/A.

C. Chi is Entitled to Summary Judgment on the 1st C/A for Equitable Indemnity, and related 3rd C/A for Contribution, and 4th C/A for Apportionment.

Chi’s principal argument is that Chi did not owe any duty or breach any duty to Plaintiff Rui Ding for the claimed injury, and that Chi was not the causal factor of Plaintiff’s injuries. “**There can be no indemnity without liability**, that is, the indemnitee and the indemnitor must share liability for the injury. Thus, no indemnity may be obtained from an entity that has no pertinent duty to the injured third party.” *Jocer Enterprises, Inc. v. Price* (2010) 183 Cal.App.4th 559, 573 (citations omitted; emphasis added).

Chi only signed a passenger waiver which undisputedly does not provide for express indemnity. UMF, No. 3. At the relevant time when it was Plaintiff’s turn to wakeboard, Wang was the driver of the boat. UMF, No. 5. Wang saw that Plaintiff was done wakeboarding and fallen into the water, and after seeing Plaintiff’s signal, Wang turned the boat around to pick her up. UMF, No.’s 6-8. The accident itself occurred, and when Wang observed Plaintiff under water he and Chi jumped in the water to rescue the Plaintiff as Chi held Plaintiff’s head above the water to ensure she could breath. UMF No.’s 9-15. Though BWS’ Separate Statement in Opposition attempts to argue the impact and interpretation of these facts, the material facts are not at issue as between these parties in relation to this motion.

BWS opposition is solely that despite Chi being a mere passenger, that Chi owed the Plaintiff a co-participant duty of care under *Knight v. Jewett* (1992) 3 Cal.4th 296, 315-316. BWS misinterprets and/or misapplies the holding of *Knight*, as its holdings do not help BWS' position.

Knight holds:

“[D]efendants generally do have a duty to use due care not to increase the risks to a participant over and above those inherent in the sport.” *Id.* at 316. “Additionally, the scope of the legal duty owed by a defendant frequently will also depend on the defendant’s role in, or relationship to, the sport.” *Id.* at 317.

However, the fundamental ruling of *Knight* is stated in:

“we conclude that a participant in an active sport breaches a legal duty of care to other participants-i.e., engages in conduct that properly make subject him or her to financial liability-**only if the participant intentionally injures another player or engages in conduct that is so reckless** as to be totally outside the range of the ordinary activity involved in the sport.” *Id.* at 320 (emphasis added).

Again the undisputed facts are that Chi was a passenger who only signed a passenger waiver. UMF No. 3. During Plaintiff’s turn to wakeboard, Wang (and thus not Chi) was the driver of the boat and Wang (thus not Chi) is the person who turned the boat around to pick-up Plaintiff. UMF No. 5 & 8. Up to the time of the accident itself, there are zero additional material facts claimed by either side, that Chi was anything more than a passenger and spectator. From the moving party, the next fact in relation to Chi was that Chi was a good samaritan who ultimately helped rescue the Plaintiff. UMF No. 14-15. In contrast, BWS’ lone fact potentially at issue is in claiming that “Chi was a co-participant in a joint recreational activity (wakeboarding) and was present on the boat during the entire incident.” BWS’s Additional Facts No. 41. However, this statement under No. 41 adds nothing more, and simply reinforces that Chi indeed was “present.”

Chi’s mere presence, is clearly not any form of intentional conduct that injured the Plaintiff, nor is simply being there anywhere close to a level of reckless activity. Under *Knight*, Chi has no potential liability. *Knight* analyzes a plethora of cases all for the same basic proposition, that intentional or reckless conduct is required for claims against others participating in sports activities. *Id.* 317-321. The *Knight* court also specifically examined and approved of a prior appellate case of *Ratcliff v. San Diego Baseball Club* (1938) 27 Cal.App.2nd 733, a case where a baseball spectator was hit by an accidentally thrown bat, with *one* claim against the baseball player who threw the bat, and a *second* claim against the stadium owner for failing to provide a reasonably safe stadium. *Knight*, *supra*, 3 Cal.4th 296, 317. This Court highlights that case for illustrative purposes. For obvious reasons there was no viable *third* claim by the *Ratcliff* plaintiff against the hundreds or thousands of spectators in the baseball stands at the time of the accident. Likewise, there is no viable claim based on any disputed material facts, for liability to attach to Chi

as a passenger and spectator.

The motion is thus GRANTED on the 1st, 3rd and 4th C/A.

Summary Judgment is thus GRANTED in favor of Chi, against the BWS cross-complaint on all causes of action.

Any party who contests a tentative ruling must email Dept20@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, Counsel for the prevailing party shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to CRC Rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the CRC. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order **REPEATING VERBATIM** the tentative ruling" (emphasis added). The order should be filed or e-filed only, do not email or mail a hard copy to the Court.

9:00 AM

Line 2

23-CIV-01880 RUI DING VS. YIQIN WANG, ET AL

RUI DING
YIQIN WANG

JEREMY D. CLOYD
PHILIP A. SEGAL

Defendant and Cross-Defendant Yiqin Wang's Motion for Summary Adjudication of FX10, LLC.'s Express Contractual Indemnity Cause of Actions of the Cross Complaint

TENTATIVE RULING:

Initially, the Court notes that Defendant Yiqin Wang (herein, "Cross-Defendant" unless another cross-defendant is specified) has not provided the address for the hearing. Department 20 is located at the Northern Branch, Courtroom L, 1050 Mission Road, South San Francisco, CA 94080. (*See* Cal. Rules of Court, Rule 3.1110 [the Notice "must specify" the location of the hearing].)

Through his Motion for Summary Adjudication of FX10's Express Contractual Indemnity Cause of Action of Its Cross-Complaint by Cross-Defendant Yiqin Wang (the "Motion"), Cross-Defendant seeks summary adjudication of four Issues defined in the Motion.

The Motion for Summary Adjudication as to Issue No. 1 is DENIED.

The Motion for Summary Adjudication as to Issue No. 2 is DENIED.

The Motion for Summary Adjudication as to Issue No. 3 is DENIED.

The Motion for Summary Adjudication as to Issue No. 4 is DENIED.

Cross-Defendant's Request for Judicial Notice is GRANTED.

Cross-Complainants' Request for Judicial Notice is GRANTED in part, and DENIED in part.

Cross-Complainants' Evidentiary Objections in Opposition are NOT REACHED due to their impropriety, as addressed *infra*.

Cross-Defendant's Evidentiary Objections in Reply are OVERRULED.

Background

The Complaint alleges that in a catastrophic boating accident, Plaintiff Rui Ding had been wakeboarding behind a motorboat that Cross-Defendant Yiqin Wang and Cross-Defendant Yincheng Zhao had rented from Cross-Complainants FX 10 Int'l, Inc., dba Berryessa Water Sports, and Plan B Equipment Rentals LLC (herein, "Cross-Complainants" unless another cross-complainant is specified), when plaintiff got sucked into the propeller of its outboard motor by

her foot which was then apparently horribly mangled.

There are numerous cross-complaints in this action. The instant motion is directed to the indemnity cause of action of the Cross-complaint filed by Cross-Complainants on July 19, 2023, against Cross-Defendant and Defendant Wang and Zhao (here, the “Cross-Complaint”).

Cross-Defendant Wang seeks summary adjudication of four Issues defined in the Motion. (Code Civ. Proc., § 437c, subd. (f).) The first three Issues assert that the challenged cause of action fails under Cross-Defendant’s affirmative defenses, and the fourth Issue asserts that the Motion must be granted because Plaintiff’s claims do not arise from operation of the equipment referred to in the agreement which Cross-Defendant signed.

Legal Standards for Summary Adjudication

A motion for summary adjudication “shall proceed in all procedural respects as a motion for summary judgment.” (Code Civ. Proc., § 437c, subd. (f)(2).) Denial of summary adjudication is appropriate on the same grounds as is the denial of summary judgment.

“A party may move for summary judgment in an action or proceeding if it is contended that the action has no merit or that there is no defense to the action or proceeding.” (Code of Civ. Proc., § 437c, subd. (a)(1).) Summary judgment will only be granted “if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law.” (*Id.*, at subd. (c).)

A defendant moving for summary judgment has an initial burden of showing either that one or more elements of a cause of action cannot be established or that there is a complete defense to the cause of action. (Code of Civ. Proc., § 437c, subd. (p)(2).) Once the initial burden has been carried, the burden shifts to the opposing party to show that a triable issue of material fact exists as either to the cause of action or a defense thereto, as applicable. (*Ibid.*)

This cross-defendant can meet his burden of showing that a cause of action is meritless, if:

- the party has shown that one or more elements of the cause of action ... cannot be established, or
- that there is a complete defense to the cause of action.

(Code Civ. Proc., § 437c, subd. (p)(2) (bullet points added).) If the cross-defendant meets this burden, then “the burden shifts to the plaintiff or cross-complainant ... to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto.” (*Ibid.*)

“Courts deciding motions for summary judgment or summary adjudication may not weigh the evidence but must instead view it in the light most favorable to the opposing party and draw all reasonable inferences in favor of that party.” (*Weiss v. People ex rel. Dep’t of Transportation* (2020) 9 Cal.5th 840, 864 (*Weiss*) (citations omitted).)

Summary judgment “is drastic and should be used with caution in order that it may not become a substitute for existing methods in the determination of issues of fact.” (*Eagle Oil & Ref. Co. v.*

Prentice (1942) 19 Cal.2d 553, 556.) Indeed, issues of fact are to be found and not determined:

By an unbroken line of decision in this state since the date of the original enactment of section 437c, the principle has become well established that issue finding rather than issue determination is the pivot upon which the summary judgment law turns.

(*Walsh v. Walsh* (1941) 18 Cal.2d 439, 441 (*Walsh*) (citations omitted).) Further:

The purpose of the summary judgment procedure is not to try the issues but merely to discover, through the medium of affidavits, whether there are issues to be tried and whether the parties possess evidence which demands the analysis of trial.

(*Melamed v. City of Long Beach* (1993) 15 Cal.App.4th 70, 76 (*Melamed*).) Specifically, California summary judgment law differs from federal law in that the former “continues to require a defendant moving for summary judgment to present evidence, and not simply point out that the plaintiff does not possess, and cannot reasonably obtain, needed evidence.” (*Aguilar v. Atl. Richfield Co.* (2001) 25 Cal.4th 826, 854-55 (*Aguilar*).) Further, the Supreme Court of California has stated that:

Language in certain decisions purportedly allowing a defendant moving for summary judgment simply to “point[]” out “an absence of evidence to support” an element of the plaintiff’s cause of action does not reflect summary judgment law as it has ever stood, and is accordingly disapproved.

(*Aguilar, supra*, 25 Cal.4th 826, 855 (citation omitted).)

The Court must consider all of the evidence and inferences reasonably drawn therefrom “in the light most favorable to” the party opposing the motion. (*Aguilar, supra*, 25 Cal.4th 826, 843.) A trial court is justified in granting summary judgment “only if the declarations filed in support of it, strictly construed, contain facts sufficient to entitle the [proponents] to judgment, and those of the [opponents to the summary judgment motion], liberally construed, show that there was no issue of fact to be tried.” (*Stationers Corp. v. Dun & Bradstreet, Inc.* (1965) 62 Cal.2d 412, 417.)

Ultimately, if the Court feels any uncertainty as to whether a grant of summary judgment is proper, “any doubts about the propriety of summary judgment must be resolved in favor of the opposing party.” (*Mateel Environmental J. Foundation v. Edmund A. Gray Co.* (2003) 115 Cal.App.4th 8, 17 (*Mateel*) (citations omitted).)

The Motion Is DENIED as to Issues Nos. 1-3.

Issue No. 1 is “Whether Cross-Defendant’s 16th, 22nd, 26th and 27th Affirmative Defenses constitute a complete bar to the enforcement of the indemnity clause as a matter of law. [UMF #’s 1-22]” (Notice of Motion, 2:8-9.)

The following are Cross-Defendant’s affirmative defenses here asserted as to the challenged second cause of action of the Cross-Complaint:

SIXTEENTH AFFIRMATIVE DEFENSE

That Cross-Defendant asserts that the terms of the contract is unconscionable in that the goods and services promised provided, namely an outboard motor boat, was substantially inferior to the standard of the industry or what was promised,

namely an inboard motor boat, such that the enforcement of the contract would be unethical.

(Cross-Defendant's Amended Answer, filed on December 14, 2023 (the "Answer"), 4:20-24.)

TWENTY-SECOND AFFIRMATIVE DEFENSE

That the conduct of Cross-Complainant rises to the level of gross negligence, including but not limited to unilaterally switching the inboard motor boat for an outboard motor boat, and by failing to provide adequate instruction, advice, information or training on the operation and safety rules of the outboard motor boat, which invalidates the contract.

(*Id.*, 5:25-6:2.)

TWENTY-SIXTH AFFIRMATIVE DEFENSE

That Cross-Defendant asserts that the contract cannot absolve the Cross-Complainant from liability for gross negligence. A liability release, to the extent it purports to release liability for future gross negligence, violates public policy and is unenforceable. *Jimenez v. 24 Hour Fitness USA, Inc.* (2015) 237 Cal.App.4th 546, 555.

TWENTY-SEVENTH AFFIRMATIVE DEFENSE

That Cross-Defendant asserts that the said contract is a standardized contract of adhesion in that the contract was imposed and drafted by the Cross-Complainant of superior bargaining strength, and it relegated to the Cross-Defendant, the subscribing party only the opportunity to adhere to the contract or reject it. *Neal v. State Farm Ins. Cos.* (1961) 188 Cal.App.2d 690, 694. The Cross-Defendant further asserts that the terms of the contract is ambiguous and that any ambiguities caused by the draftsman of the contract must be resolved against that party, namely the Cross-Complainant. *Neal v. State Farm Ins. Cos.* (1961) 188 Cal.App.2d 690, 695.

(*Id.*, 6:14-27.)

The 16th affirmative defense turns on whether the substituted outboard motorboat was substantially inferior to the industry standard or the promised inboard motor boat, such that it would be unethical, in deed, unconscionable, to enforce the contract. Cross-Defendant provides evidence tending to show that the provided boat was unsuitable for wakeboarding, and Cross-Complainants present contradictory evidence. (*See, e.g.*, Cross-Complainants' Response to Cross-Defendant's SS, UMF Nos. 5, 6, 8 (which is identical to No. 9), & 10.) The Court finds at least one disputed material fact as to Issue No. 1, as to the 16th affirmative defense, and as to UMF Nos. 5, 6, and 8-10.

The 22nd affirmative defense turns on whether Cross-Complainants were grossly negligent by switching the boat to be rented and failing adequately to train the renters on the boat's operation and safety. Cross-Defendant provides evidence tending to show that the substituted boat was unsuitable for wakeboarding as noted *supra*, and that the training was inadequate, and Cross-Complainants present contradictory evidence. (*See, e.g., id.*, UMF Nos. 14-19.) The Court finds

at least one further disputed material fact as to Issue No. 1, and as to the 22nd affirmative defense and as to UMF Nos. 14-19.

The 26th affirmative defense turns on whether a contractual release from liability for future gross negligence is unenforceable for violation of public policy. Cross-Complainants reasonably point out that whether its conduct constituted gross negligence has yet to be found. The Court agrees, this is a triable issue of material fact. Cross-Defendant argues that gross negligence may be found as a matter of law, citing authority which provides that:

Whether conduct constitutes active or passive negligence depends upon the circumstances of a given case and is ordinarily a question for the trier of fact; active negligence may be determined as a matter of law, however, when the evidence is so clear and undisputed that reasonable persons could not disagree.

(*Rossmoor Sanitation, Inc. v. Pylon, Inc.* (1995) 13 Cal.3d 622, 629 (citations omitted).) Cross-Defendant argues that his “evidence shows that the critical differences between the boats demonstrate Berryessa Water Sports’ reckless disregard for the group’s safety.” (Memorandum of Points and Authorities in Support of the Motion, 10:8-9.) However, as discussed *supra* regarding the 16th affirmative defense, evidence on this point is *not* so clear and undisputed that reasonable persons could not disagree. The Court finds at least one disputed material fact as to the 26th affirmative defense.

The 27th affirmative defense is based on two assertions: that the contract was one of adhesion due to Cross-Complainants’ superior bargaining power, and therefore unconscionable; and that its terms are ambiguous. However, as Cross-Defendant notes, unconscionability has both a procedural element to which his assertion of its adhesion applies, and a substantive element. As to the adhesion here asserted, the parties offer contradictory evidence. (*See, e.g.*, Cross-Complainants’ Response to Cross-Defendant’s SS, UMF No. 21.) On the second point, if the contract is ambiguous as Cross-Defendant asserts, then the ambiguity would be resolved by the fact-finder’s consideration of parol evidence as to the intent of the parties, and the Court does not sit as a fact-finder in ruling on this motion. The Court finds at least one further disputed material fact as to Issue No. 1, and as to the 27th affirmative defense and as to UMF No. 21.

Thus, the Court need not determine whether Cross-Defendant has met his burden on the Motion, because even if he had, it would fail due to the existence of triable issues of fact material to Issue No. 1. The second cause of action thus survives the Motion as to Issue No. 1.

Further, since Issue No. 2 also depends on the 22nd and 26th affirmative defenses, Issue No. 3 also depends on the 16th and 27th affirmative defenses, and both Issues rely on UMF Nos. 1-22, the Court finds triable issues of fact material to Issues Nos. 2 and 3 as well. The second cause of action thus survives the Motion as to Issues Nos. 2 and 3.

The Motion Is DENIED as to Issue No. 4.

Issue No. 4 is “Whether this Motion for Summary Adjudication must also be granted as a matter of law because Plaintiff Ding’s claims do not arise from the operation of the equipment referred in the agreement signed by Wang. . [UMF #’s 1-22]” (Notice of Motion, 2:17-19.)

Assuming that the “equipment” to which Cross-Defendant refers is the boat, this Issue appears to relate to whether the switch of the boat from the originally agreed to the Sea Ray results in

disconnection between Plaintiff's claims and the indemnification obligation which Cross-Complainants assert against Cross-Defendant. Cross-Defendant argues that, "[S]ince it is undisputed that the agreement was for the *inboard* motor boat which was never provided to" Cross-Defendant, his Motion should be granted as to his having no duty to defend Cross-Complainants. (Reply, 2:5-6.) Cross-Complainants assert that the term, "equipment," in the agreement is not tied to a particular boat, so that when Cross-Defendant accepted the Sea Ray, that agreement of the parties modified the rental agreement, which retained the indemnity clause. At a minimum, whether "equipment" was intended by the parties to encompass the substituted Sea Ray is a triable issue of fact. Further, since Issue No. 4 relies on UMF Nos. 1-22, the Court finds triable issues of fact material to Issue No. 4. The second cause of action thus survives the Motion as to Issue No. 4.

Moreover, in Cross-Defendant's Response to the additional material facts ("AMF") set forth in Cross-Complainants' Response to Cross-Defendant's SS, Cross-Defendant disputes each and every one of the twelve AMF, in each case (improperly) referring the Court to his Joinder in Cross-Defendant Zhao's Objections, and citing the testimony of his experts Stevick and Techeira. Thus, he shows that there are at least twelve additional disputed material facts, for at least two major reasons. First, Cross-Defendant apparently expects the Court to have sustained his Objections (all of which are directed to the Lindholm Declaration), which have been overruled, so that the Lindholm Declaration stands (its worth to be determined by the fact-finder) and is disputed by the Stevick Declaration and the Techeira Declaration. Second, even if the Court had excluded the Lindholm Declaration from its consideration, at least AMF Nos. 3, 4, 6, 9, and 11 are based on other evidence either exclusively or in addition to the Lindholm Declaration, and AMF Nos. 7 and 12 indicate that the Lindholm Declaration cites other evidence (the testimony of Deputy Hartley, and Cross-Defendant's deposition, respectively). Thus, even conservatively, the Reply demonstrates that there are at least five additional disputed issues of material fact, though Cross-Complainants do not specify the Issues to which they correspond (as Cross-Defendant also did not specify for his UMF).

Cross-Defendant's Request for Judicial Notice in Support of Motion

Cross-Defendant's Request for Judicial Notice is GRANTED as to the document submitted therewith, described as his First Amended Answer to the Cross-Complaint filed in this action (Exh. 1). (Evid. Code, § 452, subd. (d), & § 453).

However, judicial notice of this document is limited to its existence, content, and authenticity, and does not extend to the truth of the factual matters contained therein. (*Dominguez v. Bonta* (2022) 87 Cal.App.5th 389, 400.)

Cross-Complainants' Request for Judicial Notice in Opposition

Cross-Complainants' Request for Judicial Notice is granted as to: (1) subdivisions (b), (d), and (e) of section 661 of the California Harbors and Navigation Code; and (2) subdivisions (a) and (b) of 46 U.S.C. section 30505 (2021). (Evid. Code, § 452, subd. (c), & § 453.)

The request that the Court take judicial notice of Cross-Complainants' legal argument as to how said code applies is denied.

Cross-Complainants' Improper Evidentiary Objections in Opposition

Cross-Complainants have improperly placed their evidentiary objections in their response to

Cross-Defendant's separate statement and in their Memorandum of Points and Authorities in Opposition, in violation of the California Rules of Court. (*See* Cal. Rules of Court, rules 3.1352(1), 3.1354(b) ["All written objections to evidence must be served and filed separately from the other papers in support of or in opposition to the motion"], 3.1354(c) ["party submitting written objections to evidence must submit with the objections a proposed order"].) Accordingly, the Court declines to rule on the objections. (*Hodjat v. State Farm Mutual Automobile Ins. Co.* (2012) 211 Cal.App.4th 1, 8 [affirming trial court's refusal to rule on objections made in separate statements and to provide second chance to file objections].)

Cross-Complainants also have improperly placed evidentiary objections in their Supplemental Brief in Opposition, again lacking a proposed Order in violation of the California Rules of Court. However, the Court uses its discretion to consider the supplemental arguments for which it procedurally provided, and finds them to be more pertinent to the credibility and weight that should be accorded to the Stevick Declaration and to the Techeira Declaration than to the admissibility of either. Such determinations of credibility and weight are for the fact-finder, to whom Cross-Complainants may present these arguments.

Cross-Defendant's Evidentiary Objections in Reply

Cross-Defendant joins in Cross-Defendant Zhao's Objections (the "Objections"; *see* Joinder, filed on July 28, 2026), all of which are directed to the entirety of the Declaration of Marine Engineer and Naval Architect Steve Lindholm, P.E., P.M.P., NAMS-CMS, in Opposition (the "Lindholm Declaration").

The Objections does not follow the required form (Cal. Rules of Court, rule 1354), so that the exact number of Objections therein asserted and the legal bases of each are unclear.

The Objections is essentially an essay about why the challenged Declaration should be disregarded. The argument is primarily that the declarant acts unethically by ignoring that design should account for human error when he concludes that the Sea Ray, which everyone concedes to have lacked mechanical defects, was fit for its intended purpose because of the warning stickers it bore and the instruction about it given to the driver, so that the accident was caused solely by Cross-Defendant's driving thereof.

The legal bases for the Objections are not clearly set forth with citations to the Evidence Code, but the point seems to be that the declarant did not apply his expertise in rendering his opinion, instead: failing to incorporate a wealth of scientific information; showing no application of the scientific method; repeating many irrelevant facts; and merely rubber-stamping the Sheriff's report, which is inadmissible hearsay. (*See, e.g.,* Objections, 2:5-18, & 4:13-16.)

To the extent to which the argument may sound in section 801 of the Evidence Code, it is unpersuasive in that: the Objections cite a great deal of technical matter which "is sufficiently beyond common experience that the opinion of an expert would assist the trier of fact" (Evid. Code, § 801, subd. (a)); and even if the Declaration relied on inadmissible hearsay, an expert opinion may do so (*id.*, § 801, subd. (b)).

Moreover, the Objections go more to the credibility and weight that should be accorded to the Lindholm Declaration than to its admissibility.

In any event, this motion for summary adjudication is DENIED.

Any party who contests a tentative ruling must email Dept20@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, Counsel for the prevailing party shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to CRC Rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the CRC. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order **REPEATING VERBATIM** the tentative ruling" (emphasis added). The order should be filed or e-filed only, do not email or mail a hard copy to the Court.

9:00 AM

Line 3

23-CIV-01880 RUI DING VS. YIQIN WANG, ET AL

RUI DING
YIQIN WANG

JEREMY D. CLOYD
PHILIP A. SEGAL

Defendant, Cross-Defendant, and Cross-Complainant Yincheng Zhao's (Amended) Motion for Summary Adjudication on FX10, LLC.'s Express Contractual Indemnity Cause of Action of the Cross Complaint

TENTATIVE RULING:

I. Summary of Facts / Pertinent Procedural History

The Complaint alleges that in a catastrophic boating accident, Plaintiff Rui Ding had been wakeboarding behind a motorboat that Cross-Defendant Yiqin Wang and Cross-Defendant Yincheng Zhao had rented from Cross-Complainants FX 10 Int'l, Inc., dba Berryessa Water Sports, and Plan B Equipment Rentals LLC (herein, "Cross-Complainants" or "FX10" unless another cross-complainant is specified), when plaintiff got sucked into the propeller of its outboard motor by her foot which was then apparently horribly mangled.

There are numerous cross-complaints in this action. The instant motion is directed to the second cause of action for action (for express contractual indemnity) of that filed by Cross-Complainants on July 19, 2023, against Cross-Defendant and Defendant Zhao (here, the "Cross-Complaint"), and to the enforceability of the contract underlying that cause of action.

Through his Motion for Summary Adjudication of FX10's Express Contractual Indemnity Cause of Action of Its Cross-Complaint by Cross-Defendant Yincheng Zhao (the "Motion"), Cross-Defendant seeks summary adjudication of two issues defined in the Motion. (Code Civ. Proc., § 437c, subd. (f).) The first issue is defined as whether FX10's Express Contractual Indemnity cause of action in its Cross-Complaint should be voided as a matter of law, and the second issue is defined as whether FX10 breached the rental agreement and therefore said contract is terminated and Zhao is freed from any obligations arising thereunder.

II. Governing Law

A motion for summary adjudication "shall proceed in all procedural respects as a motion for summary judgment." (Code Civ. Proc., § 437c, subd. (f)(2).) Denial of summary adjudication is appropriate on the same grounds as is the denial of summary judgment.

"A party may move for summary judgment in an action or proceeding if it is contended that the action has no merit or that there is no defense to the action or proceeding." (Code of Civ. Proc., § 437c, subd. (a)(1).) Summary judgment will only be granted "if all the

papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law.” (*Id.*, at subd. (c).)

A defendant moving for summary judgment has an initial burden of showing either that one or more elements of a cause of action cannot be established or that there is a complete defense to the cause of action. (Code of Civ. Proc., § 437c, subd. (p)(2).) Once the initial burden has been carried, the burden shifts to the opposing party to show that a triable issue of material fact exists as either to the cause of action or a defense thereto, as applicable. (*Ibid.*)

This cross-defendant can meet his burden of showing that a cause of action is meritless, if:

- the party has shown that one or more elements of the cause of action ... cannot be established, or
- that there is a complete defense to the cause of action.

(Code Civ. Proc., § 437c, subd. (p)(2) (bullet points added).) If the cross-defendant meets this burden, then “the burden shifts to the plaintiff or cross-complainant ... to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto.” (*Ibid.*)

“Courts deciding motions for summary judgment or summary adjudication may not weigh the evidence but must instead view it in the light most favorable to the opposing party and draw all reasonable inferences in favor of that party.” (*Weiss v. People ex rel. Dep’t of Transportation* (2020) 9 Cal.5th 840, 864 (*Weiss*) (citations omitted).)

Summary judgment “is drastic and should be used with caution in order that it may not become a substitute for existing methods in the determination of issues of fact.” (*Eagle Oil & Ref. Co. v. Prentice* (1942) 19 Cal.2d 553, 556.) Indeed, issues of fact are to be found and not determined:

By an unbroken line of decision in this state since the date of the original enactment of section 437c, the principle has become well established that issue finding rather than issue determination is the pivot upon which the summary judgment law turns.

(*Walsh v. Walsh* (1941) 18 Cal.2d 439, 441 (*Walsh*) (citations omitted).) Further:

The purpose of the summary judgment procedure is not to try the issues but merely to discover, through the medium of affidavits, whether there are issues to be tried and whether the parties possess evidence which demands the analysis of trial.

(*Melamed v. City of Long Beach* (1993) 15 Cal.App.4th 70, 76 (*Melamed*).) Specifically, California summary judgment law differs from federal law in that the former “continues to require a defendant moving for summary judgment to present evidence, and not simply point out that the plaintiff does not possess, and cannot reasonably obtain, needed evidence.” (*Aguilar v. Atl. Richfield Co.* (2001) 25 Cal.4th 826, 854-55 (*Aguilar*).) Further, the Supreme Court of California has stated that:

Language in certain decisions purportedly allowing a defendant moving for summary judgment simply to “point[]” out “an absence of evidence to support” an element of the plaintiff’s cause of action does not reflect summary judgment law as

it has ever stood, and is accordingly disapproved.

(*Aguilar, supra*, 25 Cal.4th 826, 855 (citation omitted).)

The Court must consider all of the evidence and inferences reasonably drawn therefrom “in the light most favorable to” the party opposing the motion. (*Aguilar, supra*, 25 Cal.4th 826, 843.) A trial court is justified in granting summary judgment “only if the declarations filed in support of it, strictly construed, contain facts sufficient to entitle the [proponents] to judgment, and those of the [opponents to the summary judgment motion], liberally construed, show that there was no issue of fact to be tried.” (*Stationers Corp. v. Dun & Bradstreet, Inc.* (1965) 62 Cal.2d 412, 417.)

Ultimately, if the Court feels any uncertainty as to whether a grant of summary judgment is proper, “any doubts about the propriety of summary judgment must be resolved in favor of the opposing party.” (*Mateel Environmental J. Foundation v. Edmund A. Gray Co.* (2003) 115 Cal.App.4th 8, 17 (*Mateel*) (citations omitted).)

III. Analysis

Initial Matters

Cross-Complainants’ Request for Judicial Notice is granted as to: (1) subdivisions (b), (d), and (e) of section 661 of the California Harbors and Navigation Code; and (2) subdivisions (a) and (b) of 46 U.S.C. section 30505 (2021). (Evid. Code, § 452, subd. (c), & § 453.)

The request that the Court take judicial notice of Cross-Complainants’ legal argument as to how said code applies is denied.

Zhao’s request for judicial notice is GRANTED pursuant to Evidence Code section 452 subd. (d), but not as to the truth of the matters asserted in the documents.

The parties’ respective objections to evidence are not raised as to evidence that is material to the disposition of the Motion, and the Court accordingly has not reached the objections. (See Code Civ. Proc. section 437c subd. (q); *Reid v. Google, Inc.* (2010) 50 Cal. 4th 512.)

Separate Statement Requirement

Where summary adjudication is sought, the specific cause of action, affirmative defense, claims for damages, or issues of duty must be stated specifically in the notice of motion and be repeated, verbatim, in the separate statement of undisputed material facts. (Cal. Rules of Court, rule 3.1350.) The failure to comply with this requirement may, in the court’s discretion, constitute sufficient grounds to deny the motion. (*Young v. Superior Ct.* (1986) 179 Cal. App. 3d 28.) “The motion must be denied if the movant fails to establish an entitlement to summary adjudication of the matters thus specified; the court cannot summarily adjudicate other issues or claims, even if a basis to do so appears from the papers.” (*Schmidlin v. City of Palo Alto* (2007) 157 Cal. App. 4th 728, 744, citing *Gonzales v. Superior Court* (1987) 189 Cal.App.3d 1542.)

Here, Cross-Defendant Zhao’s Notice of Motion identifies two issues as to which Zhao is entitled to summary adjudication:

Issue No. 1: Whether FX10's Express Contractual Indemnity cause of action in its Cross-Complaint should be voided as a matter of law.

Issue No. 2: Whether FX10 breached the rental agreement and therefore said contract is terminated and Zhao is freed from any obligations arising thereunder.

(Notice of Motion, at p. 2:11-14.)

Cross-Defendant Zhao's Separate Statement of Undisputed Material Facts in Support of the MSA ("SSUMF"), however, does not state these two issues, verbatim or otherwise, anywhere in the document. The enumerated facts are not organized such that any group of facts can be attributed to one issue or the other. The facts are instead organized under other headings, including "THE PLEADINGS," "THE ACCIDENT," "THE BOAT RENTAL," "THE RENTAL WAIVER," and "FX10'S BREACH OF THE RENTAL AGREEMENT." The Motion could therefore be denied on this basis; however the Court still addresses the merits below.

Cross-Complainants were prejudiced by the improper Separate Statement because Zhao has not made clear which Undisputed Material Facts ("UMF's") he relies on in support of each issue. This defect is sufficient to support denial of the Motion for the procedurally deficient Separate Statement.

Filing of Subsequent Cross-Complaint

FX10 filed a cross-complaint against Yiqin Wang, Yincheng Zhao and Roes 1-10 for equitable indemnity, express contractual indemnity, contribution and apportionment on July 19, 2023. On January 15, 2025 FX10 then filed a subsequent cross-complaint naming Lu Jin, Jiaqi Liu, Yigong Ma, Yixin Chi, and Roes 11-20, and not naming Yiqin Wang and Yincheng Zhao. On March 6, 2025, FX10 filed a third cross-complaint against Lu Jin, Jiaqi Liu, Yigong Ma, Yixin Chi, and Roes 11-20, again leaving off Yiqin Wang and Yincheng Zhao. Zhao contends that his omission as a cross-defendant in the March 6, 2025 Cross-Complaint operates as a dismissal from FX10's Cross-Complaint, and that he is accordingly entitled to summary adjudication.

The substantive right to file a cross-complaint is governed by Code Civ. Proc. section 428.10. A party against whom a cause of action has been asserted may file a cross-complaint setting forth any cause of action it has against any of the parties who filed the complaint or cross-complaint against it. (Code Civ. Proc. section 428.10 subd. (a).) A party may file a cross-complaint against a person not yet a party to the action if the cause of action "arises out of the same transaction, occurrence, or series of transactions or occurrences as the cause brought against him" or "asserts a claim, right, or interest in the property or controversy which is the subject of the cause brought against him." (Code Civ. Proc. section 428.10 subd. (b).) While the plain language of the statute does not limit a party to the filing of a single cross-complaint, that is the accepted practice.

A cross-complaint is generally considered to be a separate action from that initiated by the

complaint, such that where there are both a complaint and a cross-complaint there are actually two separate actions pending and the issues joined on the cross-complaint are completely severable from the issues under the original complaint and answer. (*Westamerica Bank v. MBG Indus., Inc.* (2007) 158 Cal. App. 4th 109, 134.) This concept of severability supports the idea that multiple cross-complaints filed by one party, where compliant with timing and other requirements, may be operative at the same time. Zhao points to the holding of *Kuperman v. Great Republic Life Insurance Company* (1987) 105 Cal.App.3d 943, 947 as contrary to this idea. The correct citation is in fact *Kuperman v. Great Republic Life Insurance Company* (1987) 195 Cal.App.3d 943, 947 (“*Kuperman.*”) That holding addressed *Lamoreaux v. San Diego and Arizona Eastern Railway Company* (1957) 48 Cal.2d 617, 627 which pertains to an amended complaint superseding an original complaint. The same is true of the other case Zhao cites, *Boonyarit v. Payless Shoesource, Inc.* (2006) 145 Cal.App.4th 1188. A complaint differs from a cross-complaint in that the filing of a complaint initiates an action. The cited cases therefore do not support the contention that Zhao has been dismissed by operation of law.

As noted during prior hearings, the Court does share the concern by Zhao’s counsel and others, that FX10’s multiple filing of differing cross-complaints is indeed problematic. In part this was addressed recently on the May 22, 2026 hearing for FX10’s motion to file a Second Amended Cross-complaint, where leave of court was denied.

However, ultimately the question of whether Zhao was dismissed from the Cross-Complaint at issue by operation of law is not raised as one of the stated two issues in the Notice of Motion. It would therefore be improper to grant this motion on that basis.

Express Contractual Indemnity Clause

On the day of the June 27, 2021 wakeboarding accident underlying this action, all 7 participants signed a passenger waiver of liability form, and five drivers, including Zhao, signed an additional driver waiver that included an indemnification clause. (UMF No.’s 10-12.) Zhao argues that FX10’s driver waiver is unconscionable and unenforceable.

A contract of adhesion is a standardized contract which is imposed and drafted by the party of superior bargaining strength and relegates to the subscribing party only the opportunity to adhere to the contract or reject it. (*Armendariz v. Found. Health Psychcare Servs.* (2000) Inc., 24 Cal. 4th 83.) The fact that a contract is one of adhesion does not by itself render it unenforceable. (*Fisher v. MoneyGram Int’l, Inc.* (2021) 66 Cal. App. 5th 1084.) However, once a contract is identified as adhesive, courts must determine whether other factors operate to render it unenforceable. (*Pardee Constr. Co. v. Superior Ct.* (2002) 100 Cal. App. 4th 1081.)

Zhao argues that FX10’s driver waiver is a contract of adhesion. This is supported by the evidence offered in support of UMF No.’s 28-32. Zhao then argues that the driver waiver is unconscionable because a reasonable, rational person would not understand its terms to mean they would have to indemnify FX10. This argument is contradicted by the plain language of the contract, which states in part that the signee agrees to:

“...hereby **release, defend, indemnify, and hold harmless Berryessa Water Sports**, their officers, officials, agents and/or employees, and, if applicable, owner and lessees of the premises used for the activity (“Indemnitees”) **with respect to any and all claims, lawsuits, demands, judgments, liens or other encumbrances that may be levied against Berryessa Water Sports on account of the use of the equipment**, including but not limited to personal injury, disability, death, or loss or damage to person or property, **whether arising from the operation of the equipment**, and whether arising from the alleged or actual negligence of the lessees, **other users of the equipment**, Berryessa Water Sports, or any other cause, to the fullest extent permitted by law...” (Emphasis added.)

(UMF No. 34; Exhibit I Zhao Depo, Exhibit 1 Page FX10-068.)

Zhao does not offer evidence that he did not understand the indemnity language to mean something other than what it says, or that a reasonable person in his place would not have understood it. Zhao then argues that the driver waiver is unconscionable and unenforceable because (1) the click through format did not permit negotiations, (2) the Waiver was executed when the safer Supreme boat was to be rented, (3) the Waiver was negated and vitiated when the boat was changed, and (4) the party was not given the opportunity to negotiate the use of the safer Supreme boat. (MP&A ISO Motion, at p. 14:13-21.) The first and last points go to the question of whether the contract is one of adhesion, and do not show more than that on their own. The second and third points go to the issue of whether the contract was breached, rather than whether it was unconscionable on its terms, and as noted below are triable issues of fact.

Separately, Zhao argues that FX10’s negligence goes beyond that covered by the waiver. (MP&A ISO Motion, at pp. 15:15-17:13.) It is unclear how this argument supports the position that contract is unenforceable, and is itself indicative of triable issues.

On this record, Zhao has not met his burden to establish that there is no triable issue of material fact and that he is entitled to judgment as a matter of law as to the issue of whether FX10’s Express Contractual Indemnity cause of action in its Cross-Complaint should be voided as a matter of law.

Breach of the Agreement

Zhao argues that FX10 breached the driver waiver by changing the boat for which the party had contracted, and that the driver waiver was terminated as a result of this breach. (MP&A ISO Motion, at pp. 17:16-19:5.) Zhao’s Separate Statement establishes that Cross-Defendant Wang rented a boat called the Sea Ray, which has a protruding outboard motor, but that the boat which was originally promised was called a Supreme, and had a propellor tucked underneath the boat. (UMF No.’s 18-21.) FX10 “sent Wang an email saying that the Supreme originally intended for this trip was no longer available and unilaterally switched them to the Sea Ray promising that the group could use it for wake boarding.” (UMF No. 22.) The party received electronic forms to

sign. (UMF No. 28.) This presentation of facts does not establish that FX10 changed the boat from the Supreme to the Sea Ray after the party had contracted for the Supreme.

Zhao's actual signed Boat and Waverunner Driver Waiver is before the Court. See, Zhao's Compendium of Exhibits, Exh. I starting at pg. 206, and FX10's Compendium of Exhibits, Exh. D, starting at pg. 141. Throughout this waiver, the equipment is identified only generally as a "Boat." In other words, this waiver does not identify either a Sea Ray boat, or a Supreme boat. As to which of these boats, if any, this waiver may apply, is again a triable issue of fact.

Zhao therefore has not established that there is no triable issue of material fact as to whether FX10 breached the contract such that Zhao entitled to summary adjudication of the issue as a matter of law.

Cross-Defendant Zhao's Motion for Summary Adjudication is accordingly DENIED as to the two issues raised in the motion.

Any party who contests a tentative ruling must email Dept20@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, Counsel for the prevailing party shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to CRC Rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the CRC. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order **REPEATING VERBATIM** the tentative ruling" (emphasis added). The order should be filed or e-filed only, do not email or mail a hard copy to the Court.

9:00 AM

Line 4

23-CIV-04084 SYLVIA ALVAREZ-LYNCH VS. MARK LAWRENCE CELLA, ET AL

SYLVIA ALVAREZ-LYNCH
MARK LAWRENCE CELLA

SARA M. PETERS
MICHAEL J. DALEY

Defendant, Cross-Defendant, and Cross-Complainant Grocery Outlet, Inc.'s Motion for Summary Adjudication on the Duty to Defend Against SHP Pacifica, LLC

TENTATIVE RULING:

This is Cross-complainant Grocery Outlet, Inc.'s Motion for Summary Adjudication on the Duty to Defend Against Cross-defendant SHP Pacifica, LLC. The motion is GRANTED. (Code of Civil Procedure § 437c)

Summary of Facts

Plaintiff Sylvia Alvarez-Lynch alleges that on or about February 12, 2023, she was a pedestrian walking to her vehicle in the parking of Grocery Outlet located in the City of Pacifica (the Premises), when she was struck by an Acura vehicle that was traveling in a generally southbound direction in the parking lot, driven by defendant Mark Cella and owned by defendant Kevin Bianchi. See, First Amended Complaint ("FAC"), filed on August 31, 2023.

Relevantly, Grocery Outlet, Inc. ("GOI") was named as a defendant for negligence-premises liability (see FAC, pg. 4). GOI tendered the defense of this matter to its landlord SHP Pacifica, LLC ("Landlord" or "SHP") on February 13, 2024 and again on April 10, 2024, but SHP rejected the tender at that time. Sep. Statement of Undisputed Facts ("SSUF") No.'s 10-12.

Only after the filing of this motion and full briefing, SHP finally has accepted GOI's tender and agreed in writing to defend and indemnify GOI against the claims made by Plaintiff in the FAC. Reply, pg. 2, lines 7-8. On a practical level this development moots this motion, however, GOI requests that the motion be granted regardless. Reply, pg. 2, line 10.

B. Legal Standard

"A party may move for summary adjudication as to one or more causes of action within an action, one or more affirmative defenses, one or more claims for damages, ... if the party contends that ... there is no affirmative defense to the cause of action, that there is no merit to an affirmative defense as to any cause of action ... A motion for summary adjudication shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty." (Code of Civ. Proc. ("CCP"), § 437c, subd. (f)(1).)

A motion for summary adjudication “shall proceed in all procedural respects as a motion for summary judgment.” (CCP § 437c, subd. (f)(2).)

“The party moving for summary judgment bears the burden of persuasion that there is no triable issue of material fact and that he is entitled to judgment as a matter of law.” (CCP § 437c, subd. (a); *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850.) A triable issue of material fact exists if the evidence would allow a reasonable trier of fact to find the underlying fact in favor of the party opposing the motion in accordance with the applicable standard of proof. (*Ibid.*)

“When deciding whether to grant summary judgment, the court must consider all of the evidence set forth in the papers (except evidence to which the court has sustained an objection), as well as all reasonable inferences that may be drawn from that evidence, in the light most favorable to the party opposing summary judgment.” (*Avivi v. Centro Medico Urgente Medical Center* (2008) 159 Cal. App. 4th 463, 467; see CCP § 437c, subd. (c).

GOI also cites to the seminal case of *Crawford v. Weather Shield Mfg., Inc.* (2008) 44 Cal.4th 541, at 533 which interpreted Civil Code Section 2778. *Crawford* is on point and controlling. There the California Supreme Court provides “the duty to defend an indemnitee against all claims ‘embraced by the indemnity,’ as specified in subdivision 4 of section 2778, is that the **duty arises immediately upon a proper tender of defense** by the indemnitee, and thus before the litigation to be defended has determined whether indemnity is actually owed.” *Id.* at 558 (emphasis added).

C. Discussion

GOI and SHP both concede the express language of the indemnity clause at issue in Section 12.4 of the parties Lease Agreement, so it is not repeated herein. See GOI’s SSUF No. 4, and SHP’s Response to No. 4 (“Undisputed” except that SHP quotes additional language from the Lease Agreement). Both parties conceded the filing of the operative FAC, and the specific allegations made by Plaintiff, including the Negligence-Premises Liability and the facts pertaining to the incident. See GOI’s SSUF No.’s 7-9, and SHP’s Response to No.’s 7-9 (“Undisputed”). Finally, both parties again concede that GOI tendered the defense of this matter twice on February 13, 2024 and on April 10, 2024, and that SHP rejected the tender on April 16, 2024. See GOI’s SSUF No.’s 10-12, and SHP’s Response to No.’s 10-12 (“Undisputed”).

Thus there are no triable issues of material fact. Plaintiff has alleged injuries from an accident that occurred on the premises, which claim is embraced by the terms of indemnity, and for which GOI tendered the defense and SHP improperly refused before the filing of this motion.

The motion for summary adjudication is thus GRANTED. SHP had a duty to defend GOI from the first date of tender on February 13, 2024, which duty is continuing.

Any party who contests a tentative ruling must email Dept20@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, Counsel for the prevailing party shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to CRC Rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the CRC. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order **REPEATING VERBATIM** the tentative ruling" (emphasis added). The order should be filed or e-filed only, do not email or mail a hard copy to the Court.

9:00 AM

Line 5

25-CIV-07539 HAMID KHAZAELI VS. 21X CAPITAL LP, ET AL

HAMID KHAZAELI
21X CAPITAL LP

PRO SE
JOHN S. CLAASSEN

Plaintiff's (Amended) Motion for Leave to Conduct Limited (Specified) Discovery Pursuant to C.C.P. Section 425.16(g)

TENTATIVE RULING:

Plaintiff Hamid Khazaeli's Motion for Leave to Conduct Limited Discovery Pursuant to Code Civ. Proc. § 425.16, Subd. (g), is DENIED.

Plaintiff Hamid Khazaeli's request to strike the July 27, 2026 Declaration of John Claassen is DENIED. Plaintiff Hamid Khazaeli provides no authority in support of his contention that an error in the case number on a served paper warrants an order striking the paper.

When notice of a special motion to strike under Code of Civil Procedure section 425.16 is filed, all discovery proceedings are stayed. (Code Civ. Proc., § 425.16, subd. (g).) On a noticed motion and for good cause shown, a court may nonetheless exercise its discretion to allow specified discovery to be conducted. (*Ibid.*; *Balla v. Hall* (2021) 59 Cal.App.5th 652, 692.)

The party seeking the specified discovery bears the burden of demonstrating good cause, requiring the movant to "explain what additional facts he expects to uncover" and why the discovery is necessary. (*Sipple v. Foundation For Nat. Progress* (1999) 71 Cal.App.4th 226, 247.) The explanation must address the particular elements of the causes of actions or defenses at issue and show that the elements as to which discovery is being sought are likely be addressed in the ruling on the special motion to strike, such as by demonstrating that every other element of the cause of action or defense can be established. (See *The Garment Workers Center v. Superior Court* (2004) 117 Cal.App.4th 1156, 1162–1163.) In addition, to show that the discovery is necessary, the movant must demonstrate that the evidence cannot be obtained from other sources by specifying the particular reasonable attempts made to secure the information that have been unsuccessful. (See *Paterno v. Superior Court* (2008) 163 Cal.App.4th 1342, 1351, fn. 4.)

Here, Plaintiff fails to make the required showing. The motion fails to articulate or explain what evidence will show what facts to establish which elements of which causes of action. Instead, Plaintiff merely offers open-ended lists of topics to be discovered by documents requests and depositions without express connections to specified causes of action or defenses: for example, the motion states that, without discovery, "cannot establish (covered) employer, lack of protection under Civil Court section 1714.10 for all defendants, falsity, actual malice,

publication, breach, causation, knowledge, interference, damages, absence of privilege, lack of immunity, etc.” (May 25, 2026 Memorandum of Points & Authorities, p. 3. ll. 4–6; see also *id.*, at pp. 5–7 [multiple lists of areas of inquiry ending in ‘et cetera’].) Further, there is little distinction made between the thirteen defendants who have moved to strike and no showing that discovery from each is necessary.

Nor is there any explanation as to why these topics are relevant to disposition of the special motion to strike. That is, the motion for leave to conduct discovery does not show that any of these issues in particular are likely to be reached. For example, the issue of whether any particular defendant is a ‘covered’ employer—presumably meaning the Fair Employment and Housing Act applies to that defendant—is only relevant if any harassment, discrimination, or retaliation actually occurred, and the motion does not show these facts. This requires denial of the motion. (See *The Garment Workers Center, supra*, 117 Cal.App.4th at pp. 1162–1163 [error to permit discovery regarding malice element of libel without showing falsity element can be established].)

Finally, the motion also fails to show that the evidence sought cannot be obtained from other sources. Rather than explain what attempts have been made to secure relevant evidence from persons other than the thirteen defendants from whom discovery is sought, the declarations in support merely conclude that a diligent investigation was performed and that no evidence is available from Khazaeli’s own files or ‘a review’ from public records. (May 25, 2026 Declaration of Hamid Khazaeli, ¶¶ 6–7; Jul 31, 2026 Declaration of Hamid Khazaeli, ¶ 3.) Before seeking discovery, a movant must do more than look to *public* sources; third parties must be queried. (See *Paterno v. Superior Court, supra*, 163 Cal.App.4th at p. 1351, fn. 4.) The absence of an explanation is especially fatally given that many purported areas of inquiry *are* presumably available from other sources such as nonparty witnesses. (See, e.g., Jul 31, 2026 Declaration of Hamid Khazaeli, ¶ 5 [seeking information on damages from all defendants, which is presumably within Khazaeli’s *exclusive* knowledge as he is the plaintiff claiming such damages].) This independently requires denial of the motion.

Accordingly, the motion is DENIED.

Any party who contests a tentative ruling must email Dept20@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If contested, parties may appear to argue the tentative ruling. The Court will then take the matter under submission, and the Court will prepare the Order after hearing.

9:00 AM

Line 6

25-CIV-09042 MEL SOLORIO VS. SBM MANAGEMENT SERVICE LP

MEL SOLORIO
SBM MANAGEMENT SERVICE LP

DANIEL GINZBERG
NICOLE BAARTS

Defendant's Motion to Compel Arbitration and Stay the Civil Action

TENTATIVE RULING:

For the reasons stated below, Defendant SBM Management Services, LP's ("SBM" or "Defendant") "Motion to Compel Arbitration and Stay the Civil Action," filed Jan. 16, 2026, is GRANTED. (Code Civ. Proc. § 1281.2, *et. seq.*; Federal Arbitration Act, 9 United States Code, § 1 *et seq.* ("FAA"). The case is HEREBY STAYED pending completion of the arbitration. (Code Civ. Proc. § 1281.4; 9 U.S.C. § 3.)

Defendant SBM's Jan. 16, 2026 Request for Judicial Notice ("RJN") is GRANTED as to Exhibit B (Evid. Code § 452(d) and as to Exhibit C (Evid. Code § 452(h).)

FACTS/BACKGROUND

In this employment dispute, Plaintiff Mel Solorio has sued his former employer, Defendant SBM, alleging wrongful termination and various violations of the California Labor Code. SBM has moved to compel arbitration, pursuant to an Arbitration Agreement that Plaintiff signed on May 1, 2019, prior to his starting working for SBM. Plaintiff opposes the Motion, arguing that the Arbitration Agreement is unconscionable, and therefore unenforceable.

DEFENDANT SBM HAS SHOWN THAT THE PARTIES ENTERED INTO AN ARBITRATION AGREEMENT THAT COVERS THE ASSERTED CLAIMS

Code Civ. Proc. § 1281.2, states, in part:

On petition of a party to an arbitration agreement alleging the existence of a written agreement to arbitrate a controversy and that a party to the agreement refuses to arbitrate that controversy, the court shall order the petitioner and the respondent to arbitrate the controversy if it determines that an agreement to arbitrate the controversy exists, unless it determines that:

(a) The right to compel arbitration has been waived by the petitioner; or

(b) Grounds exist for rescission of the agreement.

A party meets its burden of establishing the existence of the arbitration agreement by providing a copy thereof to the Court, or by stating the paragraph verbatim. (*Baker v. Italian Maple Holdings, LLC* (2017) 13 Cal.App.5th 1152, 1160; Cal. Rules of Court, rule 3.1330.)

Here, Defendant SBM has provided a copy of the May 2019 Arbitration Agreement, meeting this burden. (Periolat Decl. ¶ 10, Ex. A [Arbitration Agreement, dated May 1, 2019].) Plaintiff does not dispute that he received, read, understood, and signed the Agreement. (*Id.*) Plaintiff also does not dispute that it encompasses all of Plaintiff's asserted claims. (See *id.* [stating: "any and all claims arising out of or related to your employment that could be filed in a court of law, including but not limited to, claims of unlawful harassment or discrimination, wrongful demotion, defamation, wrongful discharge, breach of contract or invasion of privacy, shall be submitted to final and binding arbitration, and not to any other forum."]) Plaintiff does not argue waiver. Plaintiff's sole argument is that the Agreement is unconscionable.

UNCONSCIONABILITY PRINCIPLES

Unconscionability has both a procedural and a substantive element. (*Armendariz v. Found. Health Psychcare Servs., Inc.* (2000) 24 Cal.4th 83, 114; *A & M Produce Co. v. FMC Corp.* (1982) 135 Cal.App.3d 473, 486.) The former (procedural) focuses on "oppression" and "surprise" due to unequal bargaining power. (*Armendariz, supra*, at 114.) The latter (substantive) focuses on "overly-harsh" or "one-sided" results. Both must be present in order for a court to exercise its discretion to refuse to enforce a contract or clause under the doctrine of unconscionability. (*Id.*) But they need not be present in the same degree. (*Id.*) "Essentially a sliding scale is invoked which disregards the regularity of the procedural process of the contract formation, that creates the terms, in proportion to the greater harshness or unreasonableness of the substantive terms themselves." (*Id.*) "The more substantively oppressive the contract term, the less evidence of procedural unconscionability is required to come to the conclusion that the term is unenforceable, and vice versa." (*Id.*)

PLAINTIFF HAS IDENTIFIED ONLY MINIMAL PROCEDURAL UNCONSCIONABILITY

A procedural unconscionability analysis begins with an inquiry into whether the contract is one of adhesion." (*OTO, L.L.C. v. Kho* (2019) 8 Cal. 5th 111, 126.) An adhesive contract is standardized, generally on a preprinted form, and offered by the party with superior bargaining power "on a take-it-or-leave-it basis." (*Id.*) Arbitration contracts imposed as a condition of employment are typically adhesive. (*Id.*) But adhesion alone does not make an agreement procedurally unconscionable; the pertinent question is whether circumstances of the contract's formation created such oppression or surprise that closer scrutiny of its overall fairness is required. (*Id.*) "*Oppression* occurs where a contract involves lack of negotiation and meaningful choice, *surprise* where the allegedly unconscionable provision is hidden within a prolix printed form." (*Id.*)

Plaintiff does not argue that any terms were hidden/concealed.

Initially, the Court notes that Plaintiff does not argue that the Arbitration Agreement was inconspicuous, or that Plaintiff did not see it, read it, or understand it. The “ARBITRATION” section appears in bold and capital letters, and it concluded, immediately above Plaintiff’s signature line, with the following statement in capital letters: “THIS ARBITRATION AGREEMENT IS A WAIVER OF ALL RIGHTS TO A CIVIL JURY TRIAL FOR CLAIMS ARISING OUT OF YOUR EMPLOYMENT.”) (Periolat Decl. ¶ 10, Ex. A.)

Adhesion.

Plaintiff first argues that the Agreement was presented on a “take-it-or-leave-it” basis (contract of “adhesion”). This argument is not particularly compelling, for multiple reasons. First, Plaintiff offers no evidence supporting the “take-it-or-leave-it” claim. Plaintiff has not filed a supporting declaration, and offers no evidence that he attempted to discuss or negotiate the Agreement’s terms, or that he even cared about the Arbitration clause and would have tried to negotiate it, or not sign it, assuming he could have. While SBM also does not offer any evidence that the Arbitration Agreement was negotiable, that is not its burden. Thus, the “adhesion” argument is based on speculation.

Further, even assuming the Arbitration Agreement was required as a term of employment, the mere fact that a contract is an adhesion contract does not render it unconscionable. (*Allan v. Snow Summit, Inc.* (1996) 51 Cal.App.4th 1358, 1375; *Lane v. Francis Cap. Mgmt. LLC* (2014) 224 Cal.App.4th 676, 688 [“assuming the agreement was one of adhesion, courts have consistently held that that fact alone is insufficient to invalidate an arbitration agreement: Rather, an adhesion contract remains fully enforceable unless ... the provision falls outside the reasonable expectations of the weaker party or it is unconscionable.”])

The fact that Plaintiff may have no choice but to sign the Agreement (which is unclear here) is relevant, but not particularly compelling.

“Internal procedures” not identified.

Plaintiff next argues that the following language in the Agreement is confusing, in part because the Company’s “internal procedures” are not identified:

The arbitration process shall be initiated by delivering a written request for arbitration to the other party within the time limits that would apply to the filing of a civil complaint in court. A late request will be void. No claim should be submitted to arbitration without first attempting to resolve the matter informally and exhausting Company's *internal procedures*.

[Periolat Dec. at ¶ 9, italics added; Ex. A, Agreement at 2]. But this claimed confusion appears somewhat exaggerated. The above language unambiguously states that the same filing deadline that would apply to filing a court case applies to filing an arbitration proceeding. It further states

that the employee *should* (not “must” or “shall”) attempt to resolve any dispute informally with the company before seeking arbitration. This language does not appear overly confusing. There appears to be no ambiguity as to the filing deadline, and there is no suggestion that any attempt to resolve the matter informally changes that filing deadline.

Failure to attach the arbitration rules.

Plaintiff also argues “surprise” in that the Agreement does not attach or sufficiently identify the rules that will govern the arbitration, but instead states:

The arbitrator shall conduct the arbitration in accordance with the procedures set forth in the most recent version of the National Rules for the Resolution of Employment Disputes of the American Arbitration Association.

(Periolat Dec., Ex. A.) But Plaintiff does not dispute that the most recent version of the AAA’s National Rules for the Resolution of Employment Disputes are expressly referenced and thus readily identifiable. (See RJN, Ex. C [AAA’s Employment/Workplace Arbitration Rules and Mediation Procedure, effective May 1, 2025].) Failure to attach the arbitration rules to the agreement does not necessarily suggest substantive unconscionability. (*Baltazar v. Forever 21, Inc.* (2016) 62 Cal. 4th 1237, 1246.)

Failure to identify who will administer the arbitration.

Plaintiff also notes that although the Agreement states that AAA’s procedural rules will govern the arbitration, it does not state (1) whether AAA or some other neutral dispute resolution service will administer the arbitration; (2) who selects that service; and (3) who supplies the arbitrator. The Agreement states:

If we are unable to agree upon a neutral arbitrator, we will obtain a list of arbitrators from a neutral dispute resolution service, and strike names alternatively until one arbitrator remains.

(Periolat Dec., Ex. A.) While Plaintiff is correct that the Agreement does not provide the foregoing information, the Court does not find these omissions to constitute a convincing argument of “surprise.” The Agreement provides a method for selecting an arbitrator. It states that if the parties cannot agree on an arbitrator, they will obtain a list from a neutral dispute resolution service, and alternatively strike names until one name remains. This selection procedure is facially neutral and relatively common. The Agreement also expressly references AAA rules as governing.

Plaintiff also does not persuasively argue that there is anything inherently improper about incorporating AAA rules without requiring the AAA to administer the case. In the court’s experience, this is not uncommon. Arbitration agreements often provide that AAA or JAMS rules apply, but that another provider may administer the proceeding if the parties agree, or if the AAA or JAMS declines administration. It does not appear, based on the Agreement’s language, that the

employer here (SBM) has reserved unilateral authority to select the dispute resolution service or the arbitrator, or that any ambiguity would permit SBM to “stack the deck” against the employee.

Conclusion as to procedural unconscionability.

Viewing Plaintiff’s procedural unconscionability arguments collectively, while not entirely without merit, the Court finds relatively little “procedural unconscionability.”

PLAINTIFF HAS IDENTIFIED ONLY MINIMAL SUBSTANTIVE UNCONSCIONABILITY

Unidentified internal company procedures.

Plaintiff argues that the Agreement’s “most troubling substantive provision” is the same disputed language discussed above, which states:

The arbitration process shall be initiated by delivering a written request for arbitration to the other party within the time limits that would apply to the filing of a civil complaint in court. A late request will be void. No claim should be submitted to arbitration without first attempting to resolve the matter informally and exhausting Company's internal procedures.

(Periolat Dec., Ex. A at 2.) Plaintiff argues that this language creates unfair confusion/ambiguity and is substantively unfair, because it refers to internal Company procedures that are not identified, which Plaintiff argues would leave an employee guessing as to whether the internal procedures would toll the arbitration filing deadline.

As noted above, the Court does not find this language to be overly confusing, unfair, or one-sided. First, on its face, the Agreement does not *require* participation in any internal procedure before filing for arbitration; it merely recommends attempting to resolve any dispute informally before arbitrating. And as noted above, the Agreement does not suggest that “attempting to resolve the matter informally” changes or tolls the arbitration filing deadline. The Agreement unambiguously states that the arbitration filing deadline is the same deadline that would apply to filing a court case.

“Most recent version” of the AAA rules.

Plaintiff next argues substantive unfairness based on the provision calling for the arbitrator to “... conduct the arbitration in accordance with the procedures set forth in the most recent version of the National Rules for the Resolution of Employment Disputes of the American Arbitration Association.” Plaintiff argues that the phrase “most recent version” of the AAA rules could mean the date that Plaintiff signed the Agreement (May 1, 2019), the date of the arbitration demand, or the date of the arbitration hearing. Plaintiff argues that these alternatives could produce “materially different filing requirements, fees, discovery standards, virtual-hearing presumptions, administrator powers, sanctions, and consolidation procedures.” (Opp. brief at 6.)

The Court agrees with Plaintiff that the above-cited language creates some ambiguity as to which version of the AAA rules applies, but Plaintiff offers no evidence (or even argument) that such ambiguity favors the employer (SBM) in any way. Plaintiff offers no evidence, or argument, that the applicable AAA rules that would apply changed in any way from 2019 to the present that would that would favor SBM. Thus, any ambiguity on this point may require contract interpretation, but it does not show one-sidedness.

Plaintiff also suggests substantive unfairness in that the Agreement refers to both the “Company” and “Organization,” while identifying neither by name. But this merely reflects poor drafting, not substantively unconscionability—which asks whether a contract is overly harsh, unduly oppressive, or unreasonably one-sided. Using different labels for the employer does none of this. At most, it creates ambiguity that would require contract interpretation—it does not suggest one-sidedness.

The sentence: “No procedures of the [AAA] shall invalidate the enforceability of this Agreement” does not appear one-sided. [Def. Ex A at p. 2].

Plaintiff argues the foregoing sentence demonstrates substantive unconscionability because it “eliminates AAA safeguards.” Plaintiff reads this sentence as meaning that the employer (SBM) may disregard any AAA rule that it dislikes, yet maintain the arbitration, thereby reserving for itself the power to strip away procedural protections while retaining the right to arbitrate. Plaintiff argues that this makes the Agreement one-sided.

Plaintiff’s reading of the foregoing sentence appears strained—it does not actually say anything close to what Plaintiff is arguing. It does not state that the employer (SBM) can disregard AAA rules, or that AAA’s rules are optional, or that the arbitrator may ignore AAA rules, or that the employer can choose substitute procedures, or that AAA due process protections are waived. The more natural/plausible reading of this sentence is that it is a saving clause—not a provision seeking to eliminate AAA safeguards. Under a more reasonable interpretation, it means that if a particular AAA rule would prevent the AAA from administering the arbitration or would otherwise make the Agreement unenforceable, that circumstance does not invalidate the agreement. The Court finds nothing one-sided about this language. Courts generally favor interpretations that preserve contracts over interpretations that render them void.

The Court agrees with Plaintiff that the above sentence creates some small amount of ambiguity, but again, such minimal ambiguity alone does not equate with substantive unfairness. Plaintiff suggest that because the Agreement fails to specify what happens if a AAA procedure conflicts with the Agreement, the Agreement is unconscionable. But again, substantive unconscionability asks whether the challenged term is *overly-harsh, one-sided, or unduly favorable* to the stronger party. Here, it is not clear, and Plaintiff has not shown, that any ambiguity/uncertainty creates any unfair advantage for the employer. Uncertainty alone is a question of contract interpretation, not unconscionability.

The “injunction carve-out.”

Plaintiff takes issue with the following language:

This arbitration shall be the exclusive means of resolving any claim arising out of your employment, and no action will be filed in any court or other forum. However, nothing in this agreement will affect the ability of either party to seek injunctive relief in an appropriate court of law.

Plaintiff concedes that this language is bilateral (it allows *both* parties to seek injunctive relief in court), but argues it is one-sided because employers are more likely to seek such relief. Plaintiff invokes a principal set forth in *Armendariz*, that an employer cannot require employees to arbitrate claims that are most likely to be brought by employees, while reserving litigation for claims employers are most likely to bring, absent a legitimate business justification. (*Armendariz*, *supra*, 24 Cal.4th at 117.) Plaintiff also argues the “clause must be limited to provisional relief under § 1281.8. Any broader construction is substantively one-sided.”

Plaintiff’s one-sidedness argument here has some merit, but again, appears exaggerated. First, as noted, the disputed language is facially bilateral (“either party” may seek injunctive relief in court). There is no reservation of only employer claims for court. Further, employer-favored carve-outs that have been found to be overly one-sided typically have involved language excluding (from arbitration) claims that are virtually always asserted by the employer, such as trade-secret claims, intellectual property claims, and non-solicitation agreements—i.e, carve-outs that exclusively benefit employers. The challenged clause here does not identify any subject matter; it merely allows either party to seek injunctive relief. That is materially different.

Plaintiff’s critique of the “injunctive relief carve-out” has some merit, but the language here does not appear particularly one-sided, and therefore is not a strong argument for substantive unconscionability.

Plaintiff’s contention that “the ‘Organization’s Policies’ provision conflicts with full statutory remedies.”

Plaintiff argues that California law requires arbitration agreements covering statutory employment claims to preserve the employee’s full statutory remedies. Under *Armendariz*, an arbitration agreement cannot limit the remedies that would be available under statutes such as the FEHA or the Labor Code. (*Armendariz v. Found. Health Psychcare Servs., Inc.*, 24 Cal. 4th at 103.) Thus, an arbitration agreement generally cannot prohibit an arbitrator from issuing relief that a court could order. (*Id.*) Plaintiff reads the Agreement here to do exactly that.

But Plaintiff’s interpretation of the language is questionable and speculative. It is not apparent that the Agreement limits the arbitrator in the manner that Plaintiff suggests. The Agreement does not state that the arbitrator may not order reinstatement, may not issue injunctions, may not require reasonable accommodation, may not prohibit retaliation, or may not require changes in employment practices. Instead, it states that the arbitrator,

“... may not amend, modify, or delete organizational policies unless they violate applicable law.”

(Periolat Dec., Ex. A at 2.) Those are not necessarily the same thing. For example, if an arbitrator were to find that Plaintiff’s Supervisor unlawfully retaliated against him (see Cmplt, Ninth & Tenth Causes of Action [retaliation claims]) because a Supervisor misapplied an otherwise lawful attendance policy, the arbitrator could reinstate the employee, prohibit further retaliation, award damages, and award backpay. None of those remedies necessarily require rewriting the employer’s attendance policy.

Plaintiff is correct that “Organization’s Policies” is vague. But again, minimal ambiguity alone does not establish substantive unconscionability, because ambiguity does not necessarily suggest one-sidedness.

The “unless violative of applicable law” language also weakens Plaintiff’s argument. If the arbitrator may modify policies that violate the law, then this language expressly preserves authority to alter unlawful policies.

California law generally favors interpretations that make contractual provisions consistent with one another, rather than interpreting one clause to nullify another. Here, reasonably construed, the Agreement provides that the arbitrator cannot rewrite lawful company policies, but may modify or invalidate policies that violate the law, and may award every statutory remedy authorized by law. Nothing about this language appears meaningfully unfair or one-sided.

Conclusion as to substantive unconscionability.

Viewing Plaintiff’s arguments collectively, Plaintiff has identified only minimal substantive unconscionability. Most of Plaintiff’s criticisms involve language that creates some lack of clarity/ambiguity, but which does not result in any meaningful one-sidedness. Even if the Agreement’s terms favor the employer (SBM) to some extent, the Court does not find sufficient “one-sidedness” to permit a finding of unconscionability. (See *Baltazar v. Forever 21, Inc.* (2016) 62 Cal.4th 1237, 1245

[“A party cannot avoid a contractual obligation merely by complaining that the deal, in retrospect, was unfair or a bad bargain. Not all one-sided contract provisions are unconscionable; hence the various intensifiers in our formulations: ‘overly harsh,’ ‘unduly oppressive,’ ‘unreasonably favorable.’”])

CONCLUSION

Viewing Plaintiff’s arguments in their totality, Plaintiff has not shown that the Arbitration Agreement is unconscionable. Accordingly, the Court need not address the severance issue. The Court notes, however, that if the Court had concluded that one or more of the challenged provisions were unconscionable (which the Court does not find), it would have severed any such provision(s) under Civ. Code § 1670.5 rather than invalidating the entire Agreement.

For the foregoing reasons, Defendant SBM's "Motion to Compel Arbitration and Stay the Civil Action" is GRANTED. (Code Civ. Proc. § 1281.2, *et. seq.*; FAA, 9 United States Code, § 1 *et seq.* The case is STAYED pending completion of the arbitration. (Code Civ. Proc. § 1281.4; 9 U.S.C. § 3.)

The Case Management Conference scheduled for December 2, 2025 is therefore continued to August 5, 2027 at 9:00 a.m. still before the Civil Commissioner, Courtroom H, and is on for Arbitration Status.

Any party who contests a tentative ruling must email Dept20@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, Counsel for the prevailing party shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to CRC Rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the CRC. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order **REPEATING VERBATIM** the tentative ruling" (emphasis added). The order should be filed or e-filed only, do not email or mail a hard copy to the Court.

9:00 AM

Line 7

25-CIV-10162 MANISH RAI JAIN VS. FORD MOTOR COMPANY

MANISH RAI JAIN
FORD MOTOR COMPANY

ASHLEY J. YADDGO
TRINA M. CLAYTON

Defendant's Motion for Entry of Protective Order

TENTATIVE RULING:

This is a Lemon Law case. Defendant Ford Motor Company has moved for a protective order limiting how and to whom sensitive commercial information that Ford is required by statute to provide may be disclosed. Specifically, Ford seeks for the information to be protected under Superior Court of Los Angeles County's ("LASC") Model Protective Order, with certain modifications.

Defendant's Motion for a Protective Order is GRANTED.

LEGAL STANDARD

California Code of Civil Procedure § 2031.060, subd. (b), provides that a court may enter a protective order under any of the following conditions:

The court, for good cause shown, may make any order that justice requires to protect any party or other person from unwarranted annoyance, embarrassment, or oppression, or undue burden and expense. This protective order may include, but is not limited to, one or more of the following directions:

- (1) That all or some of the items or categories of items in the demand need not be produced or made available at all.
- (2) That the time specified in Section 2030.260 to respond to the set of demands, or to a particular item or category in the set, be extended.
- (3) That the place of production be other than that specified in the demand.
- (4) That the inspection, copying, testing, or sampling be made only on specified terms and conditions.
- (5) *That a trade secret or other confidential research, development, or commercial information not be disclosed, or be disclosed only to specified persons or only in a specified way.***
- (6) That the items produced be sealed and thereafter opened only on order of the court.

(Code Civ. Proc., § 2031.060, subd. (b) [emphasis added].)

Separately, for Lemon Law cases, the California Legislature has expedited the discovery process such that auto manufacturers are required to produce certain types of documents early in litigation, without a discovery request from the plaintiff:

The defendant or manufacturer shall provide the following documents to all other parties pursuant to the timelines prescribed in subdivision (b): ...(12) Warranty policies and procedure manuals; (15) If a pre-suit restitution or replacement request is made, the manufacturer's written statement of policies and procedures used to evaluate customer requests for restitution or replacement pursuant to "Lemon Law" claims.

(Code Civ. Proc., § 871.26, subds. (h)(12) and (15).)

LEGAL ANALYSIS

1. Defendant May Seek a Protective Order Under Section 2031.060(b)

Plaintiff argues that Defendant cannot move for a protective order under Section 2031.060(b) because a demand for discovery is the trigger for such a motion, and no such demand has been made here. However, in the Court's view, Section § 871.26 effectively expedites the discovery process by requiring the parties to exchange certain documents within 60 days after the Answer is filed. The statute is conspicuously silent as to any limitations on the Court's ability to issue protective orders to protect confidential information disclosed by auto manufacturers. The Court agrees with Commissioner Elliott's conclusion in his informal advisory opinion on this matter, that the discovery framework contemplated in CCP § 871.26 does not strip a party of the ability to obtain a protective order:

Section 871.26 is clearly a discovery framework. To apply it in isolation apart from the Discovery Act would permit unintended consequences, such as those at issue here. A defendant would never opt into the Section 871.20, et seq., framework if it meant they lost the ability to protect trade secrets or other highly sensitive information. And with no invocation of the framework, the legislation would be rendered meaningless. That the framework does not specifically mention "protective order" is not persuasive.

(IDC Minute Order, June 24, 2026.)

The Legislative history of AB 1755 supports Section 871.26, in relevant part here, is a discovery framework: "[F]or cases that do reach the civil justice system, this bill adopts a set of **streamlined discovery processes** to ensure that the information most relevant to a lemon law case is disclosed early in the litigation process and without the need to argue costly discovery disputes before the court." (California Bill Analysis, A.B. 1755 Assem., 8/30/2024 [emphasis added].)

The statute and legislative history are silent as to protective orders – including where the legislative history addresses specific types of discovery disputes the bill seeks to alleviate:

The expedited discovery provisions of this measure will reduce protracted discovery disputes. Discovery disputes, most notably arguments over what must be turned over to opposing parties in litigation, is one of the largest drivers in delays in almost every type of civil litigation. Lemon law litigation is no different. Presently, parties squabble over what maintenance records are to be disclosed, what warranty documents must be disclosed, and how depositions can be conducted. Every time one of these disputes arises, the court is forced to calendar a motion hearing and delay a potential trial. Given that lemon law cases are typically very document-heavy matters and involve a limited universe of documents, many of these discovery disputes represent little more than unnecessary litigation tactics that only serve to delay justice.

Recognizing that litigating futile discovery motions can significantly prolong relatively simple lemon law cases, this bill seeks to streamline discovery in lemon law actions. The bill mandates that specified documents--those most associated with lemon law claims including maintenance records and warranties-- be disclosed to the opposing party within 60 days of a defendant answering or otherwise responding to a complaint. Additionally, a scope-limited deposition must be taken of the plaintiff and representative of the defendant within 120 days of the defendants response to the complaint. Finally, seeking early out-of-court resolution, the bill mandates mediation take place within the first 150 days of the action.

As noted, the bill specifies a range of lemon law related documents that must be disclosed. While some opponents contend that this bill forces parties to take on an unnecessary burden of producing documents quickly, in reality, the bill calls for the timely disclosure of documents all parties should readily have in their possession and would certainly have to disclose after a protracted discovery dispute. Accordingly, this bill is focused on expediting discovery, reducing needless discovery disputes, and promoting mediation to resolve claims in a timely manner without overburdening either party to the case.

(California Bill Analysis, A.B. 1755 Assem., 8/30/2024 [*italics in original*].)

Thus, the legislative history reveals only that the Legislature was concerned with discovery disputes over which maintenance records and warranty documents are to be disclosed and, therefore, mandated that such documents be disclosed. Nothing in Section 871.26 (or AB 1755) addresses confidentiality of information within documents subject to disclosure or purports to eliminate the ability of the court to limit the use of confidential discovery through a protective order by means of the Civil Discovery Act procedure. Legislative silence on an issue is weak evidence of legislative intent. (*See U.S. v. Wells* (1997) 519 U.S. 482, 496 [“[W]e have frequently cautioned that [i]t is at best treacherous to find in congressional silence alone the adoption of a controlling rule of law” (internal citations and quotations omitted)]; *Brown v. Gardner* (1994) 513 U.S. 115, 121 [“congressional silence lacks persuasive significance” (internal citations and quotations omitted)].)

The Court cannot take the extraordinary position that the Legislature – through its silence on the issue of a protective orders in Section 871.26 and its legislative history – intended to preclude

parties from seeking (and courts from ordering) protective orders directed at limiting how and to whom sensitive commercial information produced in accordance with Section 871.26 may be disclosed.

2. Defendant Has Shown Good Cause for the Protective Order Requested

Protective orders are appropriate to prevent dissemination of a party's "commercial information." (Code Civ. Proc. § 2031.060, subd. (b)(5).) The California Supreme Court has confirmed that "the burden is on the party seeking the protective order to show good cause **for whatever order is sought**." (*Fairmont Ins. Co. v. Superior Ct.*, 22 Cal.4th 245, 255 [emphasis added].) Thus, Defendant bears the burden of presenting facts supporting that the documents it seeks to protect are confidential. (*Nativi v. Deutsche Bank Nat. Trust Co.* (2014) 223 Cal.App.4th 261, 315, 318–319 [no factual showing for "sweeping protective order" where declaration merely stated "[Defendant] is severely prejudiced if these documents are not provided any protection at all" – with no factual basis or articulated reasoning provided].)

Plaintiff argues that Defendant's supporting declaration is conclusory and "fails to identify a single trade secret, define any protected information, or provide evidence warranting confidentiality." (Oppo., at p. 6:16-18.) The Court disagrees with that broad characterization. Defendant has provided facts demonstrating good cause for a standard protective order directed at limiting how and to whom sensitive commercial information produced in accordance with Section 871.26 may be disclosed.

For example, on Customer Relationship Center Policies and Procedures, Defendant states:

[The Customer Relationship Center Policies and Procedures] are proprietary to Ford because they reveal Ford's processes and methodologies to identify, document, assess, and resolve customer or product concerns. In this regard, the documents address the specifics of how customer calls and contacts should be handled for a myriad of reasons, including inquiries regarding general information, vehicle concerns, parts, roadside assistance, owner communications, and others, and sets forth the process that the Customer Relationship Center may follow to process, document, diagnose, handle, and resolve those customer concerns. Furthermore, the documents address the role and responsibility within the Customer Relationship Center, and reveal Ford's process to address, record, resolve, and where necessary, elevate customer concerns using Ford's established processes, including the process through which customer concerns are processed, documented, diagnosed, handled, and resolved by Ford. How Ford classifies customer concerns, and how it determines when and whether to elevate a concern, repurchase a vehicle, or otherwise communicate with its customers, is proprietary to Ford (or its suppliers or vendors). Such information was developed by Ford (or its suppliers or vendors) over time and after considerable investment in its staff and its third-party vendors who operate Ford's call center. Disclosure of these documents would benefit a Ford competitor training its own employees on customer communications or in developing its own process for such communications without the need to expend the same time and investment in creating these processes as incurred by Ford.

(Pannell Decl., 9. 10.)

The declaration provides specific factual details about the confidential nature of its Customer Relationship Center policies and procedures, explains why it is proprietary (e.g. reveals Ford's processes, methodologies, and classification systems developed over time with investment), and articulates the competitive harm in that it would benefit competitors in training employees and developing their own processes without the investment. and the potential competitive harm from disclosure.

Plaintiff's declaration is similarly sufficient with regard to Ford's Warranty Policy and Procedure Manual and Ford's Reacquired Vehicle ("RAV") Policy and Procedure Manuals. (*See* Pannell Decl., ¶¶ 11-12.)

Plaintiff argues that Defendant has not provided sufficient facts to establish a "trade secret" under the California's Uniform Trade Secrets Act, codified at Civil Code section 3426.1. However, a court's discretion to issue a protective order regarding sensitive commercial information is not limited to trade secrets as defined in the Civil Code. Rather, courts have broader discretion to issue protective order directing "[t]hat a trade secret ***or other confidential research, development, or commercial information*** . . . be disclosed only to specified persons or only in a specified way." (Code Civ. Proc., § 2031.060, subd. (b)(5) [emphasis added].) Here, Defendant's declaration sufficiently describes commercial information warranting a protective order directing how and to whom that information may be disclosed – without allowing Defendant to withhold any such information from Plaintiff.

Plaintiff argues that public interest outweighs Defendant's confidentiality claims because a protective order would serve as a roadblock to consumers obtaining relief under the Song-Beverly Act. (Oppo., at p. 8:7-9.) The Court finds this argument unconvincing. Defendant is not seeking to withhold any relevant information or preclude its use in this litigation. Rather, Defendant modestly seeks for the dissemination of confidential commercial information to be governed by a standard protective order directing how and to whom the information may be disclosed.

3. Defendant's Proposed Protective Order Is Reasonable

Defendant argues that the proposed protective order – which is LASC Model Protective Order, with relatively minor modifications made by Defendant (see Hollenback Decl., Ex. C.) – is reasonable. While Plaintiff has opposed the issuance of a protective order, Plaintiff has not opposed the Defendant's proposed protective order on its terms. Further, Defendant has established that Plaintiff has continually ignored communications by Defendant to discuss the terms of a protective order in this case, including the terms of the proposed protective order here, dating back to February 9, 2026 (when Defendant filed and served its Answer) and continuing through July 29, 2026. (Hollenback Decl., ¶¶ 4-8; Hollenback Reply Decl., ¶¶ 5-6.)

The Court accepts Defendant's proposed Protective Order as reasonable.

Accordingly, Defendant's Motion for a Protective Order is GRANTED.

Any party who contests a tentative ruling must email Dept20@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, Counsel for the prevailing party shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to CRC Rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the CRC. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order **REPEATING VERBATIM** the tentative ruling" (emphasis added). The order should be filed or e-filed only, do not email or mail a hard copy to the Court.

9:00 AM

Line 8

CLJ448859

WORLDWIDE ASSET, ET AL VS NANCY D BROWN

WORLDWIDE ASSET PURCHASING, LLC
NANCY D BROWN

RORY W. CLARK

Assignee River Heights Capital, LLC's Claim of Exemption (Wage Garnishment – Enforcement of Judgment)

TENTATIVE RULING:

No tentative ruling, parties are to appear on this exemption hearing. Zoom is authorized; Courtroom L zoom credentials for Dept. 20.
